

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: REPUBLIC OF KENYA

Organization or entity responsible for the preparation of the report: KNATCOM

Name of contact person:

Email and telephone number of contact person:

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention? Yes

☐ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

▪ Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

There is interest and the Government has put in place various initiatives towards addressing discrimination for the vulnerable including those from the disadvantaged areas, those with special need, gender based discrimination among other forms of discrimination.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☒ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☒ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Usually the locals refer to the Kenyan Constitution and other laws providing for non-discrimination since the country is yet to ratify the Convention.

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

The Constitution of Kenya

Guarantees the right to free and compulsory basic education for every child.

Prohibits discrimination on various grounds, including race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language, or birth.

Basic Education Act (2013) under review

Ensures every child has the right to free and compulsory basic education.

Mandates the government to provide free primary education and ensure equitable access to quality education.

Sector policy for learners and Trainees with disability (2019) and implementation guidelines

Promotes inclusive education and ensures that children with disabilities have access to education.

Advocates for the integration of children with special needs into regular schools.

Gender Policy in Education (2005) under review

Aims to eliminate gender disparities in education.

Encourages the enrolment and retention of girls in schools, particularly in regions where girls are disadvantaged.

Children Act (2022)

Protects the rights of children, including the right to education.

Outlaws any form of discrimination against children.

Sessional Paper No. 1 of 2019 on a Policy Framework for Reforming Education and Training for Sustainable Development in Kenya:

Emphasizes the need for inclusive education that accommodates all learners.

Focuses on improving access, quality, and equity in education.

National Education Sector Strategic Plan (NESSP) 2023-2027

Provides a roadmap for achieving inclusive and equitable quality education.

Sets out strategies to address barriers to education for marginalized and vulnerable groups.

Alternative Provision of Basic Education and Training (APBET) Policy (2015)

¹²

Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

Targets children who are out of the formal education system.
 Provides guidelines for the recognition, registration, and support of non-formal education providers to ensure these children receive an education.

The National Policy on Gender and Development (2019)
 Integrates gender concerns into the development agenda, including education.
 Seeks to address gender disparities in access to education and training opportunities.

The Persons with Disabilities Act (2003)
 Ensures the rights of persons with disabilities, including access to education.
 Requires that learning institutions be adapted to accommodate the needs of students with disabilities.

Positive Discipline Manual (2023)
 Provides for alternative discipline measures as opposed to discriminative corporal punishment That was banned in 2021.

Child Safety and Security Against Violence Extremism (CSSAVE) Manual that seeks to equip stakeholders with skills to detect traits of violence extremism for the learners

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please indicate the relevant legal provisions:

- i. The Constitution of Kenya
- ii. Basic Education Act (2013)
- iii. Persons with Disabilities Act (2003)
- iv. Children Act (2022)
- v. National Gender and Equality Commission Act (2011)
- vi. Teachers Service Commission Act (2012)

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

The Constitution of Kenya

Article 27 (Equality and freedom from discrimination): This article prohibits discrimination on various grounds, including race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language, or birth. It ensures equal protection and benefit of the law for all individuals.

Article 43 (Economic and social rights): This article guarantees every person the right to education.

Article 53 (Children's rights): This article guarantees every child the right to free and compulsory basic education and ensures protection from abuse, neglect, harmful cultural practices, and all forms of violence and discrimination.

Basic Education Act (2013)

Section 4: Establishes the right to free and compulsory basic education for every child.

Section 34: Prohibits discrimination on any grounds in the provision of education.

Section 95: Provides for the inclusion of children with special needs and disabilities in the education system, ensuring their right to quality education.

Persons with Disabilities Act (2003)

Section 18: Requires learning institutions to accommodate the needs of persons with disabilities by providing accessible facilities and ensuring they are not discriminated against in any educational establishment.

Children Act (2022)

Part III: Ensures the right of every child to free and compulsory basic education and protects them from discrimination, neglect, and exploitation.

Section 7: Guarantees the right of the child to education and to equal treatment, including equal access to educational opportunities.

National Gender and Equality Commission Act (2011)

This act establishes the National Gender and Equality Commission, which is mandated to promote gender equality and freedom from discrimination. It ensures that both public and private entities comply with laws guaranteeing equal access to opportunities, including education.

Teachers Service Commission Act (2012)

Section 11: Requires the Teachers Service Commission to ensure teachers' recruitment and promotion are based on merit and non-discrimination.

These legal frameworks collectively work towards eliminating discrimination and promoting equal access to education for all individuals in Kenya, ensuring that every child and adult has the opportunity to receive a quality education regardless of their background or personal circumstances.

☑ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education

- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

Various education policies
 Gender in education programmes
 Free primary education for all government agenda
 Free Secondary Education
 Girl Education Programmes
 Sanitary towels programmes
 School meals for learners
 Scholarship programmes

☐ Combatting discrimination in terms of curriculum:

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

Equal opportunities to all learners

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Policies and legislations that protect learners from discrimination
 Capacity building of teachers
 Adoption of conventions that protect learners from discrimination

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

☐ Legislation provides for inclusive education for all ☐ Multiple and flexible learning pathways¹⁷ are provided for

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030](#))

- ☐ Policy measures aim to enhance inclusion in education for all
- ☐ Teachers are trained on inclusive education¹⁶ and to value diversity
- ☐ Initiatives to address discrimination and promote cultural diversity and mutual acceptance
- ☐ Other:
- ☐ Curricula and teaching methods are inclusive in design¹⁸
- ☐ Multilingual and intercultural education is supported

Free Primary Education (FPE) Program

Implemented since 2003 to ensure that all children have access to free and compulsory primary education.

Reduces financial barriers by eliminating tuition fees and providing learning materials.

Free Day Secondary Education (FDSE) Program

Introduced in 2008 to improve access to secondary education by covering tuition costs.

Aims to increase enrolment, retention, and completion rates at the secondary level.

Special Needs Education (SNE) Policy

Promotes inclusive education by integrating children with disabilities into regular schools.

Provides specialized training for teachers and adaptive learning materials to cater to learners with special needs.

School Infrastructure Improvement

Construction of new schools and upgrading existing facilities to accommodate more students and provide a conducive learning environment.

Ensures that schools are accessible to learners with disabilities through ramps, special toilets, and other facilities.

Provision of Bursaries and Scholarships

Provision of bursaries and scholarships to support students from low-income families, marginalized communities, and vulnerable groups.

Programs like the Constituency Development Fund (CDF) bursary scheme and the Equity Group Foundation's Wings to Fly scholarship program.

School Feeding Programs

Implemented in arid and semi-arid regions to improve enrolment and retention rates.

Provides meals to students, addressing issues of hunger and malnutrition that affect school attendance and performance.

Affirmative Action and Gender Parity Initiatives

Programs to encourage the enrolment and retention of girls in schools, such as the provision of sanitary pads and awareness campaigns on the importance of girls' education.

Establishment of rescue centers for girls at risk of early marriage or female genital mutilation (FGM) to ensure they continue their education.

Alternative Provision of Basic Education and Training (APBET) Policy

[Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Targets out-of-school children, providing them with non-formal education opportunities. Ensures that non-formal education centers are registered and supported to deliver quality education.

Accelerated Education programmes to support learners who have been left out. – The programmes aim at reaching out to learners who missed out on achieving the requisite learning outcomes.

Teacher Training and Professional Development

Continuous professional development programs for teachers to enhance their skills in inclusive education practices.

Training on handling diverse classrooms and supporting learners with different needs.

Curriculum Reforms

Introduction of the Competency-Based Curriculum (CBC) to provide a more holistic and inclusive education.

Focuses on developing learners' skills, values, and attitudes, accommodating diverse learning needs and styles.

Child Protection Policies

Implementation of child protection policies and guidelines to ensure a safe learning environment.

Measures to prevent and address bullying, abuse, and discrimination in schools.

Monitoring and Evaluation

Regular monitoring and evaluation of education programs and policies to ensure their effectiveness in promoting inclusion and equity.

Use of data to identify gaps and inform decision-making for continuous improvement.

Integration of ICT in Knowledge management

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Children Act 2022 is in place and provides for Non discrimination of children as well as their rights and protection.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Some of the Challenges incurred in the implementation of the non-discrimination and equal opportunities include;

- cultural issues that promote discrimination including FGM, early marriages, cultural gender related prejudices that discriminate against various gender mainly females

-Unavailability of appropriate opportunities for education especially for learners with special needs and young mothers. Education institutions that are easily accessible to such learners may not comprehensively address their needs

- Regional disparities in availability of education infrastructure including classrooms, teachers, technological infrastructure including connectivity

Other relevant general measures, including gender equality

- ☐ Legislation provides for gender equality in education
 - ☐ Policy measures aim to enhance gender equality
 - ☐ Gender-responsive education sector planning is undertaken
 - ☐ Providing positive or affirmative action measures
 - ☐ Providing financial incentives and fellowships
 - ☐ Teachers are trained (initial and in-service) on gender equality
 - ☐ Teachers are trained to combat stigmatisation¹⁹
 - ☐ Other:
- ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
 - ☐ Re-entry programmes for young mothers are provided for
 - ☐ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰
 - ☐ Curricula are rid of all stereotypes²¹ and bias
 - ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
 - ☐ Ensuring gender parity in technical and vocational training education and training (TVET)

Accelerated Education Programmes for learners to enhance acquisition of learning outcomes for those who may have missed out

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Ministry is in the process of developing a policy to guide accelerated learning

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Financial Constraints

Inadequate funding for educational programs, especially in marginalized and underserved regions. Insufficient resources for schools to provide necessary learning materials, infrastructure, and support services.

Infrastructure Deficiencies

Many schools, particularly in rural and arid regions, lack adequate classrooms, sanitation facilities, and accessibility features for learners with disabilities.

Overcrowded classrooms due to high enrolment rates, affecting the quality of education and teacher-student interaction.

Teacher Shortages and Training

Shortage of trained teachers, particularly those specialized in special needs education and inclusive teaching practices.

Limited opportunities for continuous professional development and training on inclusive education strategies.

Cultural and Social Barriers

Persistent cultural practices and societal attitudes that discriminate against certain groups, such as girls, children with disabilities, and those from marginalized communities.

¹⁹ ‘ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

²⁰ ‘ Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal’ ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong’ (Cambridge Dictionary).

Early marriages, female genital mutilation (FGM), and child labour practices that hinder the education of girls and other vulnerable groups.

Geographical Barriers

Difficulty in reaching remote and nomadic communities with education services.

Inadequate transportation infrastructure, making it challenging for children in remote areas to access schools.

Poverty and Economic Inequality

High levels of poverty prevent many families from affording the indirect costs of education, such as uniforms, books, and transportation.

Economic inequality leads to disparities in access to quality education, with children from low-income families being disadvantaged.

Inadequate Support for Inclusion /Special Needs Education

Limited availability of specialized facilities, assistive devices, and tailored learning materials for children with disabilities.

Insufficient awareness and understanding of inclusive education among educators and the general public.

Policy Implementation Gaps

Inconsistent implementation of education policies at the national and county levels.

Lack of coordination among different stakeholders, including government agencies, NGOs, and community organizations.

Insecurity

Insecurity in certain regions, such as areas affected by conflict or terrorism, disrupts educational activities and access.

Schools in such areas face threats of attacks, leading to closures and reduced attendance.

Monitoring and Evaluation Challenges

Ineffective monitoring and evaluation mechanisms to track the progress of inclusive education initiatives.

Lack of reliable data to inform policy decisions and address emerging challenges.

Gender Disparities

Continued gender disparities in enrolment, retention, and completion rates, particularly in secondary and higher education.

Social and economic factors that disproportionately affect girls' education, such as domestic responsibilities and gender-based violence.

Inadequate Community Involvement

Insufficient community engagement and participation in education initiatives.

Resistance to change and lack of support from local communities in promoting inclusive education practices

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

The Constitution of Kenya - This is the supreme law of the land and provides for the protection of the rights of children. Article 53(1)(d) specifically states that every child has the right to be protected from early marriage.

The Marriage Act (2014): This Act consolidates various laws relating to marriage and explicitly sets the minimum age for marriage.

The Children Act (2022): This Act was enacted to provide for the rights and welfare of children, including provisions related to child marriage.

Key Provisions

The Marriage Act (2014)

Section 4: Stipulates that a person must be at least 18 years old to be legally married.

Section 87: Offenses related to child marriage are outlined, emphasizing that any person who marries a child, or who facilitates the marriage of a child, commits an offense and is liable to punishment under the law.

The Children Act (2022)

Section 2: Defines a child as any person under the age of 18.

Section 14: Explicitly prohibits the marriage of children and defines it as a form of abuse and exploitation.

Section 15: Sets out the penalties for individuals who engage in or facilitate child marriage.

Exceptions and Absolute Minimum Age

There are no legal exceptions to the minimum age of marriage under Kenyan law. Both the Marriage Act and the Children Act strictly prohibit marriage under the age of 18 with no exceptions.

The absolute minimum age for marriage in Kenya is therefore 18 years. This means that any marriage involving individuals below this age is considered invalid and punishable under Kenyan law.

The Penal Code (Cap 63) also contains provisions that protect children from sexual exploitation and abuse, which indirectly support the prohibition of child marriage.

Customary Laws and Practices- While some communities may have traditional practices that allow for marriage at a younger age, these practices are not legally recognized and are overridden by the statutory provisions mentioned above

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|--|
| <ul style="list-style-type: none"> ☐ Legislation provides for the right to education of national minorities ☐ Policy measures aim to enhance the right to education of national minorities ☐ Policy elaboration includes consultations with local communities ☐ The right to carry out their own educational activities is legally guaranteed for national minorities ☐ Educational standards are established for educational institutions run by national minorities ☐ Positive or affirmative action measures are provided for national minorities ☐ Financial incentives and fellowships are provided for national minorities ☐ Other²³: | <ul style="list-style-type: none"> ☐ Teachers are trained on intercultural education ☐ Teachers are trained to combat stigmatisation²⁴ <ul style="list-style-type: none"> o Multilingual and intercultural education are supported o Native language instruction is ensured for national minorities o Adapting curricula and teaching and learning methods to their needs for national minorities ☐ Curricula are rid of all stereotypes²⁵ and bias |
|--|--|

Recommendations

- i. Ensure full implementation and enforcement of constitutional protections and affirmative action programs to benefit minorities and marginalized groups.
- ii. Enhance public awareness and education on the rights of minorities to reduce discrimination and promote inclusiveness.
- iii. Build the capacity of minorities to participate effectively in governance and development processes.
- iv. Support initiatives aimed at preserving and promoting the cultural values, languages, and practices of minority groups.
- v. Accelerate the development of infrastructure and provision of basic services in marginalized areas to bridge the development gap.
- vi. Establish robust mechanisms for monitoring and evaluating the impact of policies and programs on minority groups to ensure they are achieving the desired outcomes.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

The Constitution of Kenya

The Constitution is the supreme law of Kenya and provides robust protections for the rights of national minorities.

Article 10: National values and principles of governance include inclusiveness and protection of the marginalized.

Article 27: Guarantees equality and freedom from discrimination. It states that every person is equal before the law and has the right to equal protection and equal benefit of the law.

Article 56: Specifically addresses the rights of minorities and marginalized groups, mandating the state to implement affirmative action programs to ensure that minorities and marginalized groups:

Participate and are represented in governance and other spheres of life.

Are provided special opportunities in educational and economic fields.

Are provided special opportunities for access to employment.

Develop their cultural values, languages, and practices.

Have reasonable access to water, health services, and infrastructure.

Article 204: Establishes the Equalization Fund to provide basic services including water, roads, health facilities, and electricity to marginalized areas to bring the quality of services in those areas to the level generally enjoyed by the rest of the nation.

The National Cohesion and Integration Act

This Act aims to promote national cohesion and integration by outlawing discrimination on ethnic grounds and encouraging ethnic tolerance.

Section 25: Prohibits discrimination on the basis of ethnicity.

Section 26: Establishes the National Cohesion and Integration Commission, tasked with promoting equality and cohesion.

The Kenya Vision 2030

This national development blueprint recognizes the importance of including marginalized communities in the national development agenda.

Policy Frameworks and Affirmative Action

Affirmative Action Programs- Various affirmative action programs have been put in place to promote the inclusion of minorities in education, employment, and other sectors.

County Governments Act (2012)- Encourages County governments to ensure the representation of minorities and marginalized groups in county assemblies and other governance structures.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

1. Geographic and Infrastructural Barriers

Remote Locations: Many minority communities live in remote and hard-to-reach areas, leading to limited access to educational facilities. For instance, regions like northern Kenya, where many minority groups reside, have fewer schools.

Infrastructure Deficit: Lack of adequate infrastructure, such as classrooms, laboratories, and sanitation facilities, hinders the learning environment.

2. Economic Constraints

Poverty: High levels of poverty among minority communities lead to difficulties in affording school fees, uniforms, and other educational materials. Many families prioritize immediate survival over education.

Opportunity Costs: Children from minority communities often engage in labour to support their families, reducing school attendance.

3. Cultural and Social Barriers

Cultural Practices: Some cultural practices, such as early marriages and pastoralism, affect school attendance and retention, particularly for girls.

Language Barriers: Instruction in schools is often in English or Kiswahili, which may not be the first language for children from minority communities, affecting comprehension and learning outcomes.

4. Quality of Education

Teacher Shortages: Minority areas often suffer from a lack of qualified teachers, leading to high pupil-teacher ratios. For example, some schools in marginalized areas report ratios as high as 70:1.

Learning Materials: Inadequate supply of textbooks and learning materials impacts the quality of education delivered in minority regions.

5. Policy and Implementation Gaps

Inconsistent Policy Implementation: While policies exist to support minority education, inconsistent implementation and lack of monitoring result in ineffective outcomes.

Inadequate Funding: Despite the existence of the Equalization Fund, delays and inefficiencies in disbursement affect the development of educational infrastructure in marginalized areas.

6. Security Issues

Conflict and Insecurity: Insecurity in certain regions, such as areas affected by banditry or inter-community conflicts, disrupts schooling. Schools may be closed or attendance drops due to safety concerns.

Enrolment Rates: According to the Kenya National Bureau of Statistics (KNBS) data, regions with significant minority populations, such as Turkana, Mandera, and Wajir, have some of the lowest primary and secondary school enrolment rates in the country. For instance, the Net Enrolment Rate (NER) for primary education in Turkana was around 50% compared to the national average of over 90% as of recent statistics.

Completion Rates: The completion rates in primary and secondary education for minority groups are significantly lower. For example, in some marginalized areas, the primary school completion rate is below 60%, compared to the national average of around 80%.

Efforts to Address These Challenges

Affirmative Action Programs: Initiatives like bursaries and scholarships targeted at minority students aim to alleviate financial barriers.

School Feeding Programs: Programs providing meals at school encourage attendance and retention.

Infrastructure Development: Government and NGO projects focus on building and refurbishing schools in marginalized areas.

Community Sensitization: Efforts to sensitize communities on the importance of education, particularly for girls, are ongoing.

Policy Enhancements: Strengthening the implementation and monitoring of education policies targeting minorities.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Government has developed a policy and the National Council for Nomadic Education in Kenya to address the specific needs of Nomadic populations. Through the Council, there are specific programmes that are flexible and address the cultural factors that hinder access to quality education by Nomadic Communities.

The Language of instruction policy provides for use of local languages in the classrooms.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

²⁶ Supra note 15.

²⁷ Supra note 16.

1. Geographic and Infrastructural Barriers

Remote Locations: Many minority communities live in remote and hard-to-reach areas, leading to limited access to educational facilities. For instance, regions like northern Kenya, where many minority groups reside, have fewer schools.

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Opportunity Costs: Children from minority communities often engage in labour to support their families, reducing school attendance.

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Policy Enhancements: Strengthening the implementation and monitoring of education policies targeting minorities.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|---|--|
| ☐ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☐ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☐ Curricula are rid of all stereotypes ³² and bias |
| ☐ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to | ☐ Non-formal and/or alternative education programmes are provided |
| | ☐ Language classes to newcomers are provided for |

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

³¹ Supra note 13

³² Supra note 16.

overcome administrative barriers²⁹ are provided for ☐ Multilingualism and intercultural education are encouraged

☐ Teachers are specifically trained to ensure their inclusion

☐ Teachers are trained to combat stigmatisation³⁰

☐ Other:

N/A

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Legal Framework

1. The Constitution of Kenya

Article 2: Recognizes international treaties and conventions as part of the laws of Kenya once ratified.

Article 43: Guarantees economic and social rights, including the right to education, health, and social security, which apply to all persons, including migrants and displaced persons.

2. The Refugees Act (2021)

Objective: To provide for the recognition, protection, and management of refugees and asylum-seekers.

Provisions:

Establishes the Refugee Affairs Secretariat (RAS) responsible for the management of refugee affairs.

Guarantees the right to seek asylum and protection from refoulement (forced return).

Provides for the issuance of refugee identity cards and travel documents.

Allows refugees access to education, employment, and public services.

3. The Kenya Citizenship and Immigration Act (2011)

Objective: To consolidate laws relating to citizenship, immigration, and the issuance of travel documents.

Provisions:

Outlines the process for acquiring, losing, and regaining Kenyan citizenship.

Provides regulations for the entry, residence, and exit of foreign nationals.

Establishes the Immigration Department to manage immigration and citizenship matters.

4. The Prevention, Protection, and Assistance to Internally Displaced Persons and Affected Communities Act (2012)

Objective: To provide a framework for the prevention of displacement, protection, and assistance to internally displaced persons.

Provisions:

Defines internally displaced persons (IDPs) and outlines their rights.

Establishes mechanisms for the identification, registration, and support of IDPs.

Mandates the government to provide humanitarian assistance and facilitate durable solutions for IDPs.

Policy Measures

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

1. National Policy on the Prevention of Internal Displacement and the Protection and Assistance to Internally Displaced Persons (2011)

Objective: To provide comprehensive measures for preventing internal displacement and protecting and assisting IDPs.

Key Elements:

Prevention of displacement through early warning systems and conflict resolution mechanisms.

Protection of IDPs' rights, including access to basic services and humanitarian assistance.

Facilitation of durable solutions, such as return, resettlement, and reintegration.

2. National Strategy for Assistance to Refugees and Asylum-Seekers (2019-2024)

Objective: To enhance the protection and assistance provided to refugees and asylum-seekers in Kenya.

Key Elements:

Integration of refugees into national development plans.

Strengthening the capacity of national and local authorities to manage refugee affairs.

Promoting self-reliance and livelihood opportunities for refugees.

3. National Migration Policy (Draft)

Objective: To manage migration in a way that maximizes its benefits and minimizes its negative impacts.

Key Elements:

Enhancing border management and security.

Protecting the rights of migrants and ensuring their access to services.

Promoting regular migration channels and addressing irregular migration.

4. Comprehensive Refugee Response Framework (CRRF) (2017)

Objective: To provide a holistic and sustainable approach to refugee management.

Key Elements

Enhancing refugee self-reliance and resilience.

Improving access to education, healthcare, and employment for refugees.

Promoting social cohesion and integration between refugees and host communities.

Challenges and Implementation

Resource Constraints: Insufficient funding and resources to fully implement policies and provide services to all affected populations.

Security Concerns: Insecurity in certain regions, particularly near refugee camps, can hinder effective implementation of measures.

Coordination Issues: Coordination between various government agencies, international organizations, and NGOs can be challenging.

Socio-economic Barriers: Discrimination and socio-economic barriers can limit access to services and opportunities for displaced populations.

- Have specific measures been adopted for climate displaced persons?

☒ Yes ☐ No

- Please elaborate:

Legal and Policy Frameworks

1. The Constitution of Kenya (2010)

Article 42: Guarantees the right to a clean and healthy environment, which is foundational in addressing climate-related issues.

Article 69: Mandates the state to ensure sustainable exploitation, utilization, management, and conservation of the environment and natural resources.

2. Climate Change Act (2016)

Objective: To provide a legal and institutional framework for the mitigation and adaptation to the effects of climate change.

Provisions:

Establishes the National Climate Change Council to coordinate climate change actions.

Mandates the development of the National Climate Change Action Plan.

Provides for mainstreaming climate change responses into sectoral planning.

National Policies and Strategies

1. National Climate Change Action Plan (NCCAP) (2018-2022)

Objective: To guide Kenya's climate change response to minimize vulnerabilities and maximize resilience.

Key Elements:

Identification of vulnerable sectors and populations.

Development of adaptation and mitigation actions.

Integration of climate risk management into national development planning.

2. National Policy on Climate Finance (2020)

Objective: To enhance the mobilization and management of climate finance for effective climate change response.

Key Elements:

Mobilization of resources for climate change adaptation and mitigation projects.

Support for communities affected by climate change, including climate-displaced persons.

3. National Adaptation Plan (NAP) (2015-2030)

Objective: To provide a framework for climate adaptation to reduce vulnerabilities to climate impacts.

Key Elements:

Strengthening the resilience of vulnerable communities.

Implementation of adaptation actions in key sectors such as agriculture, water, and health.

Enhancing disaster risk management to address displacement caused by climate-related events.

Specific Measures for Climate-Displaced Persons

1. Disaster Risk Management

National Disaster Risk Management Policy (2018): Focuses on disaster risk reduction and management, including climate-related disasters such as floods and droughts. It aims to strengthen early warning systems and enhance community preparedness and response.

2. Social Protection Programs

Hunger Safety Net Programme (HSNP): Provides cash transfers to vulnerable households in arid and semi-arid lands (ASALs) affected by drought and other climate-related shocks. This program helps mitigate the impact of displacement due to climate change.

3. Resettlement and Relocation Initiatives

Government-Led Relocation: In cases of severe climate events such as floods, the government has undertaken relocation of affected communities to safer areas. For example, during the El Niño floods, several communities were relocated to minimize risk.

4. Community-Based Adaptation Projects

The Ministry has established a working Group on Education in Emergencies to address specific needs of learners affected by emergencies.

Various projects funded by international donors and NGOs focus on building resilience at the community level. These include water harvesting, drought-resistant crops, and alternative livelihoods to reduce vulnerability to climate displacement.

Challenges in Implementation

Resource Limitations: Insufficient funding for comprehensive implementation of climate adaptation and mitigation projects.

Coordination Issues: Effective coordination among different government agencies, NGOs, and international organizations can be challenging.

Data Gaps: Lack of comprehensive data on climate-displaced persons hinders effective planning and response.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Enrolment Rates: According to the United Nations High Commissioner for Refugees (UNHCR), primary school enrolment rates in refugee camps like Dadaab and Kakuma are around 70%, compared to the national average of over 90%. Secondary school enrolment rates are even lower, often below 20%.

Completion Rates: Completion rates for primary education among refugee children are significantly lower than the national average. For example, in Kakuma refugee camp, the primary school completion rate is approximately 50%, compared to the national average of around 80%.

Efforts to Address These Challenges

Education in Emergencies (EiE) Programs: Initiatives by UNHCR, UNICEF, and other organizations provide emergency education services, including temporary learning spaces and accelerated learning programs.

Scholarship and Bursary Programs: Various scholarships and bursaries are available to support the education of displaced children and youth, helping to alleviate financial barriers.

Teacher Training and Recruitment: Efforts to train and recruit more teachers in refugee camps and IDP settlements aim to improve the pupil-teacher ratio and the quality of education.

Language Support Programs: Programs to support language acquisition, including English and Kiswahili classes, help migrants and refugees integrate into the Kenyan education system

Psychosocial Support: Provision of psychosocial support services to address trauma and mental health issues among displaced children is critical to improving their educational outcomes.

1. Legal and Policy Barriers

Lack of Legal Documentation: Many refugees, asylum seekers, and stateless persons lack the necessary documentation, such as birth certificates or identity cards, which are often required for school enrolment.

Policy Implementation Gaps: While Kenya has policies in place to support the education of displaced persons, inconsistent implementation and lack of awareness among local authorities can hinder access to education.

2. Economic Constraints

Poverty: High levels of poverty among refugees and IDPs make it difficult for families to afford school fees, uniforms, and other educational materials. For instance, in refugee camps like Dadaab

and Kakuma, many families struggle to meet basic needs, which impacts children's ability to attend school.

Opportunity Costs: Children from these communities often engage in labour to support their families, reducing school attendance. This is particularly true for families in informal settlements or camps where economic opportunities are scarce.

3. Geographic and Infrastructural Barriers

Remote and Overcrowded Camps: Refugee camps and informal settlements are often located in remote areas with limited access to educational facilities. Schools within these camps are typically overcrowded and under-resourced.

Poor Infrastructure: Many schools lack adequate infrastructure, such as classrooms, sanitation facilities, and learning materials. For example, classrooms in refugee camps often accommodate double or triple the number of students they are designed for.

4. Language and Cultural Barriers

Language Barriers: Instruction in Kenyan schools is primarily in English and Kiswahili, which may not be the first language for many migrants and refugees. This language barrier affects comprehension and learning outcomes.

Cultural Differences: Differences in cultural practices and education systems between the home countries of migrants and refugees and Kenya can pose challenges in integrating into the Kenyan education system.

5. Quality of Education

Teacher Shortages: There is a significant shortage of trained teachers in refugee camps and areas with high numbers of displaced persons. For instance, the pupil-teacher ratio in some refugee camp schools can be as high as 100:1.

Inadequate Learning Materials: Schools in refugee camps and IDP settlements often lack textbooks and other learning materials, affecting the quality of education provided.

6. Psychosocial and Emotional Barriers

Trauma and Mental Health Issues: Many displaced children have experienced trauma and displacement, affecting their ability to concentrate and perform well in school. Lack of adequate psychosocial support services exacerbates this issue.

7. Security Issues

Insecurity in Camps: Refugee camps and IDP settlements can be affected by insecurity and violence, which disrupt schooling. For example, conflict in parts of northern Kenya has led to the temporary closure of schools and displacement of students.

People with disabilities:

❑ Legislation provides for their right to education

❑ Policy measures aim to enhance their right to education

❑ Inclusion in mainstream schools is ensured

❑ Special schools are used as resource centers to inclusive schools

❑ Mainstream teachers are specifically trained on disabilities

❑ Teachers are trained to combat stigmatisation³³

❑ Auxiliary assistance is provided

❑ Curricula and teaching and learning methods are adapted

❑ Curricula are rid of all stereotypes³⁴ and bias

³³ Supra note 15.

³⁴ Supra note 16.

☐ Positive or affirmative action measures are provided

☐ Financial incentives and fellowships are provided

☐ Other

☐ Education infrastructure and learning materials are adapted

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Legal Framework

1. The Constitution of Kenya (2010)

Articles 43, 53, 54, 55, 56, 57, and 59 of the Constitution provides for children's right to free and compulsory basic education, including quality services, and to access education institutions and facilities for persons with disabilities.

Article 53(1)(b): Guarantees the right to free and compulsory basic education for every child.

Article 43(1)(f): Ensures that every person has the right to education.

Article 54 (b) gives specific right to Persons with Disabilities to access educational institutions and facilities that are integrated into society with the interests of the persons.

2. The Children Act (2001) domesticates Article 28 of the 1989 UN Convention on the Rights of the Child). The Act provides that every child shall be entitled to compulsory free basic education.

3. The Basic Education Act (2013) provides for free and compulsory basic education to all children. The Act explicitly mentions the rights of children with disabilities. It makes it mandatory for parents to ensure their children's admission to schools and criminalises failure to do so.

4. The Persons with Disabilities Act (PDA, 2003), sections 18 and 19 safeguards the right to education and prohibits the denial to admission of a person with a disability to any course of study based on disability. It also provides for adaptation of infrastructural, socio-economic and environmental facilities to ensure a conducive environment for persons with disabilities.

Policy Measures

1. Ministry of Education Sector Policy for Learners and Trainees with Disabilities (2018) recognizes the importance of inclusive education by emphasizing on the need for all learners to learn together in an inclusive environment.

2. Free Primary Education (FPE) Program (2003) which aims to provide free primary education to all children in Kenya.

Key Elements:

Abolition of school fees and levies for primary education.

Provision of textbooks and learning materials to primary schools.

3. Free Day Secondary Education (FDSE) Program (2008) which aims to make secondary education more accessible and affordable.

Key Elements:

Abolition of tuition fees for day secondary schools.

Provision of grants to cover the cost of instructional materials and operational expenses.

Provision of meals to students in targeted schools.

4. Bursaries and Scholarships

Special bursaries and scholarship programmes are provided that specifically target learners with disabilities.

5. Affirmative Action Programs for Special Needs Education (SNE): Focuses on providing educational support to children with disabilities and those from marginalized communities.

Establishment of special schools and integrated units within regular schools.

Provision of specialized learning materials and trained teachers. Learners with disabilities in basic learning institutions receive higher capitation than their regular peers. For instance, normal capitation for students in secondary school is Kshs. 22,240 while learners with disability is between Kshs. 35, 000 and Kshs. 37,000.

The Special Education Task Force report (2003) recommended that the government provides learners and trainees with physical disabilities with basic assistive devices needed to access both the learning environment and the curriculum.

6. Alternative Education Pathways

Alternative curriculum pathways and assessments are provided for learners with special needs which has distinct levels. i.e Foundation, Intermediate, Pre-vocational and Vocational levels

7. The Ministry of ICT Policy (2016) stipulates that ICT is expected to be integrated seamlessly in teaching and learning across all levels of education.

/-- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Exclusion from education: Majority of children with disabilities are not in school. According to the Kenya National Survey for Persons with Disabilities (2008), only 39% of persons with disabilities in Kenya had attended a mainstream primary school and only 9% had attended high school (National Council for Population and Development, 2008).

Gaps in policy provisions: The SNE Policy has not provided adequate systems and facilities that respond to the challenges faced by children with disabilities.

Resource Limitations: Learners with disabilities require specialized human resources, infrastructure, teaching and learning materials at both individual and institutional levels. Insufficient funding for Special Needs Education limits provision of quality education.

Geographic Barriers: Remote and marginalized areas often lack adequate educational facilities and infrastructure.

Socio-Economic Barriers: Poverty, stigmatization and negative attitudes can hinder school attendance and retention leading to discrimination of children with disabilities.

Inadequate trained teachers lead to high pupil-teacher ratios which affects the quality of education provided.

Inaccessible curriculum: Regular schools lack adaptation of learning materials to learners with special needs thus hindering access to learning.

High cost of specialized technology for learners with disabilities thus hindering government's goal of providing inclusive quality education for all.

Low capacities among teachers: Inadequacy of staff with requisite skills hinders support to education and training for learners with disabilities.

Inadequate advocacy and awareness campaigns for learners with special needs and disabilities.

Students from poor households:

- ☐ Financial incentives and fellowships for school enrolment are provided
- ☐ Teachers are trained to combat stigmatisation³⁵
- ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
- ☐ Curricula are rid of all stereotypes³⁶ and bias
- ☐ Positive or affirmative action measures are provided
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Legal Framework

1. The Constitution of Kenya (2010)

Article 53(1)(b): Guarantees the right to free and compulsory basic education for every child.

Article 43(1)(f): Ensures that every person has the right to education.

Article 56(b): Mandates affirmative action programs to ensure that minorities and marginalized groups, including those from poor households, have special opportunities in educational and economic fields.

2. Basic Education Act (2013)

Objective: To provide free and compulsory basic education to all children.

Provisions:

Ensures that no child is denied admission to a public school due to lack of fees or resources.

Mandates the establishment of a National Education Board to oversee the implementation of education policies.

Emphasizes the need for support services to ensure that disadvantaged children have access to education.

Policy Measures

1. Free Primary Education (FPE) Program (2003)

Objective: To provide free primary education to all children in Kenya.

Key Elements:

Abolition of school fees and levies for primary education.

Provision of textbooks and learning materials to primary schools.

Increased enrolment rates: The program has significantly increased enrolment rates, with near-universal primary education achieved since its implementation.

2. Free Day Secondary Education (FDSE) Program (2008)

Objective: To make secondary education more accessible and affordable.

Key Elements:

Abolition of tuition fees for day secondary schools.

Provision of grants to cover the cost of instructional materials and operational expenses.

Increased transition rates from primary to secondary education.

3. School Feeding Programs

³⁵ Supra note 15.

³⁶ Supra note 16.

National School Meals Program: Aims to improve nutrition and encourage school attendance, particularly in arid and semi-arid lands (ASALs) and informal settlements.

Provision of meals to students in targeted schools.

Positive impact on school attendance and retention rates.

4. Bursaries and Scholarships

Constituency Development Fund (CDF): Provides bursaries to students from poor households to cover school fees and related expenses.

Equity Group Foundation's Wings to Fly Program: Offers scholarships to academically gifted students from disadvantaged backgrounds.

Presidential Secondary School Bursary Scheme: Targets students from poor households to support their secondary education.

5. Affirmative Action Programs

Special Needs Education (SNE): Focuses on providing educational support to children with disabilities and those from marginalized communities.

Establishment of special schools and integrated units within regular schools.

Provision of specialized learning materials and trained teachers.

6. Alternative Education Pathways

Non-Formal Education (NFE): Provides educational opportunities to out-of-school children and youth in informal settlements and marginalized areas.

Establishment of non-formal education centers.

Flexible learning schedules to accommodate working children and those with other responsibilities.

Challenges in Implementation

Resource Limitations: Insufficient funding for education programs leads to overcrowded classrooms, inadequate learning materials, and underpaid teachers.

Geographic Barriers: Remote and marginalized areas often lack adequate educational facilities and infrastructure.

Socio-Economic Barriers: Poverty, child labour, and socio-cultural practices can hinder school attendance and retention.

High pupil-teacher ratios and insufficient training for teachers affect the quality of education provided.

Following the introduction of FPE, primary school enrolment increased from 5.9 million in 2002 to over 10 million in recent years.

Transition rates from primary to secondary school have improved, reaching over 70% in recent years, largely due to the FDSE program.

The School Meals Program has positively impacted attendance and retention rates in targeted schools, with some schools reporting attendance rates of over 95% when meals are provided.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

1. Economic Constraints

School Fees and Related Costs: Despite the implementation of Free Primary Education (FPE) and Free Day Secondary Education (FDSE), indirect costs such as uniforms, textbooks, and examination fees still pose significant barriers. Many families struggle to afford these expenses.

Poverty: High poverty levels force children from poor households to engage in income-generating activities to support their families. This leads to high dropout rates and irregular attendance.

2. Insufficient Infrastructure

Overcrowded Classrooms: With the increase in enrolment following the introduction of FPE, many schools became overcrowded. This affects the quality of education, with some schools having pupil-teacher ratios as high as 100:1.

Inadequate Facilities: Many schools, especially in rural and marginalized areas, lack basic facilities such as classrooms, laboratories, libraries, and sanitation. This inadequacy hampers effective learning.

3. Quality of Education

Teacher Shortages: There is a significant shortage of qualified teachers, particularly in rural and marginalized areas. This shortage leads to high pupil-teacher ratios and overburdened teachers, which negatively impacts the quality of education.

Inadequate Learning Materials: Many schools lack sufficient textbooks and other learning materials. This situation forces students to share limited resources, affecting their learning experience.

4. Geographic Barriers

Remote Locations: Schools in remote and arid regions are often far from students' homes. The long distances discourage attendance and increase dropout rates, particularly for girls who face additional safety concerns.

Insecurity: In some regions, insecurity and conflict disrupt schooling. For example, areas affected by inter-ethnic conflicts or terrorist activities often experience temporary school closures and displacement of students.

5. Socio-Cultural Barriers

Child Labour: Economic necessity often forces children from poor households into labour, reducing their school attendance. This is particularly prevalent in agricultural and informal sectors.

Early Marriages and Cultural Practices: In some communities, cultural practices such as early marriages and female genital mutilation (FGM) negatively impact girls' education. These practices lead to high dropout rates among girls.

6. Policy Implementation Gaps

Inefficient Distribution of Resources: Delays and inefficiencies in the distribution of resources, such as textbooks and funds, hamper effective implementation of educational programs.

Lack of Monitoring and Evaluation: Inadequate monitoring and evaluation of education programs lead to gaps in implementation and accountability, affecting the quality and accessibility of education for poor students.

According to the Kenya National Bureau of Statistics (KNBS), the primary school dropout rate is higher in rural and marginalized areas, where poverty levels are also higher. For instance, dropout rates in some rural counties can be as high as 30%.

Although primary school enrolment rates have increased to over 90% nationally, completion rates remain lower, particularly in poor households. For example, the primary school completion rate in some rural areas is below 60%, compared to the national average of around 80%.

In some overcrowded schools, pupil-teacher ratios can reach 100:1, significantly higher than the recommended ratio of 40:1.

Efforts to Address These Challenges

School Feeding Programs: The National School Meals Program aims to improve nutrition and encourage attendance, particularly in arid and semi-arid lands (ASALs).

Bursaries and Scholarships: Programs like the Constituency Development Fund (CDF) bursaries and the Wings to Fly scholarship provide financial support to students from poor households.

Infrastructure Development: Government and donor-funded projects focus on building and refurbishing schools, particularly in rural and marginalized areas.

Teacher Recruitment and Training: Efforts to recruit and train more teachers aim to reduce the pupil-teacher ratio and improve the quality of education.

Community Engagement: Initiatives to engage communities in supporting education and addressing socio-cultural barriers are critical to improving school attendance and retention rates.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and

Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☐ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

ECCE services are mostly provided in the pre- school centres which are normally domiciled in primary schools. In Kenya we have pre -primary schools owned and operated by the county governments and others by private developers. The has made ECCE accessible. In respect to respecting a child’s needs, some counties provide play materials and porridge to the ECDE learners.

- Is compulsory and free of charge pre-primary education available? Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- Pre- primary education in Kenya is compulsory. Every learner of pre- school going age is supposed to be taken and enrolled in pre- school. No child should be left out.
- Learners are supposed to be enrolled from the age of 4 years and they remain in pre - primary for two years. That is, pre -primary 1 and pre- primary 2

- ☐ Pre-primary education is **not** compulsory.
- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

- Pre- primary education in Kenya is free of charge. However, this only applies to learners in public pre- primary centres. Parents who opt to take their children to private schools pay for it.
- Pre -primary education in Kenya is free for the 2 years that the child is supposed to be in school.

- ☐ Pre-primary education is **not** free.

³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☒ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☒ Other: | |

Some pre -schools do not have the required infrastructure. Some classes and toilets are dilapidated. Some centres do not have the appropriate furniture.

There is weak coordination between the National and County Governments in the provision of ECCE in the country as ECCE is a devolved function

There is no clear schemes of service for teachers in ECCE adopted by all providers

Weak parental support and involvement,

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

The Government is in the process of transitioning from the previous 8-4-4 system of education to the 2-6-3-3 Competency Based Curriculum. The 8-4-4 system of education required learners to

undergo 8 years of primary education, 4 years of secondary education and a minimum of 4 years in university.

Under the 8-4-4 system, the government has been providing support to public primary schools through Free Primary Education (FPE) grants. Every learner from class 1 to class 8 has been receiving a grant of KSh. 1,420 per year to meet the cost of purchasing learning materials and the day-to-day operations.

Under the CBC the learners are expected to go through 2 years of pre- primary education, 6 years of primary education, 3 years in Junior School, 3 years in Senior school and a minimum of 3 years in university. Whereas the preprimary education is devolved and managed by county governments, the primary education is under the national government. Learners are expected to enroll in Preprimary at the age of 4 and transition to primary school at the age of 6. The government will continue to provide FPE capitation to all learners in primary school.

- Is primary education compulsory and free of charge?

- ☐ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☐ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The constitution of Kenya, articles 43(f) and 53(b) provide for the right to education and the right free and compulsory education respectively. Similarly, the Basic education Act (2013) guarantees the right of every Kenyan child to free and compulsory basic education.

To facilitate the provision of compulsory free primary education, the government continues to provide FPE capitation at the rate of KSh 1420 per learner per year. Parents are expected to meet the cost of purchasing uniform and feeding. However, the purchasing power of the KSh 1420 per learner per year has been eroded by the rising inflation over the more than 5 years in which the rate has remained in use. Schools that find it difficult to meet the daily learning costs, especially the workers' salaries and maintenance of facilities at times result to charging parents some fees for the same.

The Presidential Working Party on Education Reforms (**PWPER**) had recommended the following:

1. Increase in FPE capitation grants from KSh. 1,420 per learner per year to KSh. 2,238 per learner per year.
2. Provision of a minimum essential package for schools with an enrollment of 240 learners and below at the rate of KSh. 537,120 per school per year to enable schools with low enrollments meet the cost of day to day running.

- What challenges were encountered in realizing primary education?

- | | |
|--|--|
| ☐ Limited access | ☒ Poor learning outcomes in: |
| ☒ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☒ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

According to the National Education Sector Strategic Plan (2018-2022) the main constraints hindering access to primary education include:

- Direct costs on uniform and school meals
- Indirect costs: poverty, insecurity, long distances covered to schools
- Lack of food and water at home.
- Retrogressive cultural practices that prioritize school attendance by boys and require girls to assume domestic responsibilities at home
- Inadequate sanitary facilities at school
- Early pregnancies
- Inadequate physical facilities in schools such as classrooms and furniture
- Inadequate staffing

- Please elaborate. Brief quantitative information may be added.

EQUITY AND INCLUSION

To ensure that learners with disabilities/ learners with special needs have access to education, the Ministry of Education:

- Has supported the establishment of special schools/ special units to cater for learners with different needs/ challenges
- Provides a top-up in addition to FPE capitation to meet the cost of learning materials

In the arid and semiarid areas, the government has put in place several measures to reduce dropout and increase school attendance:

- Establishment of low-cost boarding schools to ensure that learners remain in school even when parents migrate in search of pasture and water
- Provision of lunch through the school feeding programme that is managed by the National Council for Nomadic Education in Kenya (NACONEK)

To ensure that the teenage girls do not fail to attend school while menstruating, the government provides free sanitary towels to all school going girls who have attained menstrual age.

POOR LEARNING OUTCOMES

To improve performance in areas where many learners fail to meet expectations, the government, with donor support, Initiated the Kenya Primary Education Equity in Learning Programme (KPEEL) with funding from World bank – IDA, GPE and LEGO Foundation. The programme will run from 2022 – 2026 and is aimed at:

- reducing regional disparities in learning outcomes,
- improve retention of girls in upper primary education and
- strengthen systems for delivering equitable education outcomes.

It will be implemented in counties where learners performed poorly in literacy and numeracy in the 2018 National Assessment for Monitoring Learners Achievement (NASMLA)

2.2 Secondary Education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

12/13 to 14/15 years old, lower secondary takes three years

- Please provide the age of enrolment and duration of upper secondary education:

15/16 to 17/18 years old, upper secondary takes three years

- Is lower and upper secondary education compulsory and free of charge?

☒ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

☐ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☒ Upper secondary education is compulsory.

☐ Upper secondary education is **not** compulsory.

☐ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Education for secondary education is guided by the Constitution (2010), the Basic Education Act (2013), The Children Act (2011). Students in upper secondary pay Kshs. 22,244.00 for day schooling and Kshs.53,554 for boarding expenses, on average each student spends Kshs. 13,000 on uniforms

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes or No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

The legal employment in Kenya is 18 years old which coincides with the completion of upper secondary education.

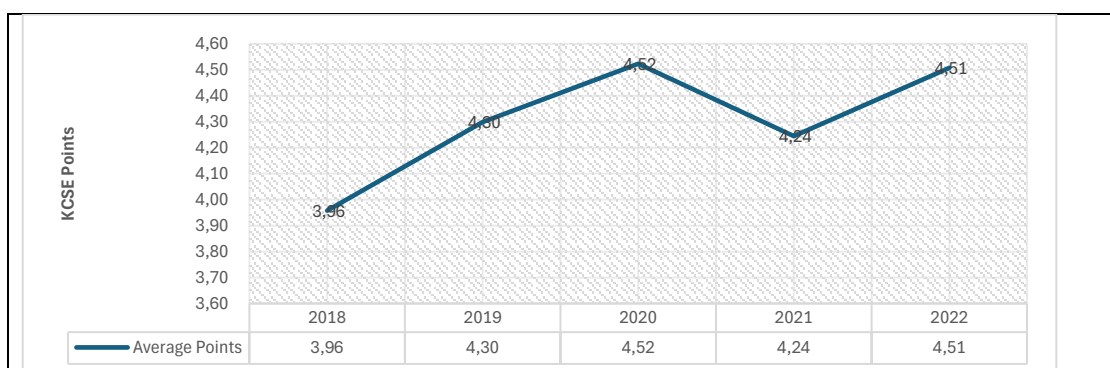
- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

Poor learning outcomes due to low number of professionally trained teachers. There are also issues of equity and inclusion especially for the most vulnerable children.

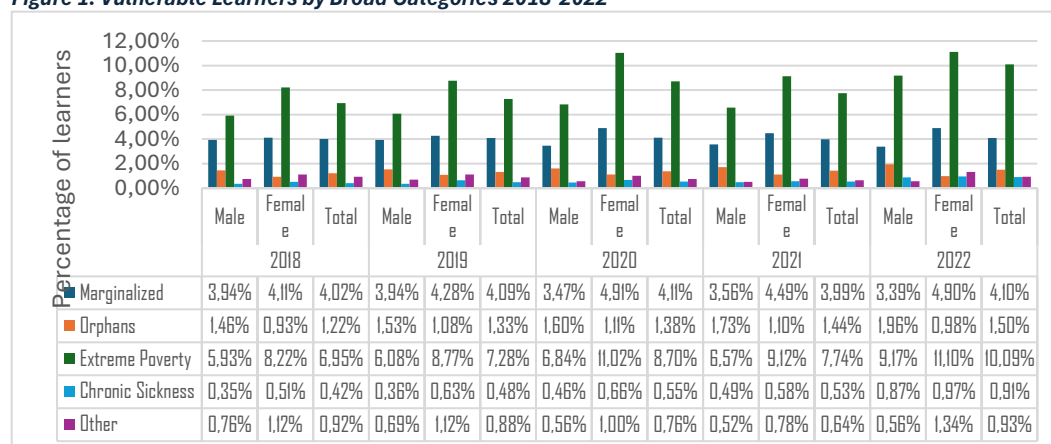
- Please elaborate. Brief quantitative information may be added.

There is a deficiency in the number of teachers, the Teachers Service Commission (TSC) estimates a teacher shortage of 111,870 most of which are secondary school teachers. In addition, the average performance in the national exams has been low as shown in the Graph



Over the years 2018 to 2022, the number of vulnerable learners continued to rise. However, there were varying trends for each academic year. While the marginalized were constant at about 4% of the enrolment, those with extreme poverty ranged between 6% and 11%, those with chronic illness ranged between 0.3% and 1% of the enrolment and the orphans 1% and 2% of the enrolment. Also, female students have more vulnerable cohorts compared to male students. The graph shows vulnerable students for the period 2018 -2022.

Figure 1: Vulnerable Learners by Broad Categories 2018-2022



Source: MOE, 2023

Despite this reality the Government is yet to adopt an equity-based financing model

2.3 Higher Education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training.

³⁹ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

⁴⁰ Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

☐ Higher education is free of charge

☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)

☒ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

Funding in Higher Education

1. Students Loans

Year	Institution	Amount of Loans Awarded (KSh Million)		
c Universities		Male	Female	Total
2019/20		5,693.0	3,776.1	9,469.1
2020/21		5,246.9	3,331.3	8,578.2
2021/22		5,476.1	3,237.9	8,714.0
2022/23		5,191.6	3,049.2	8,240.8
2023/24		12,932.5	7,447.5	20,380.0
Private Universities				
2019/20		963.7	695.0	1,658.7
2020/21		970.4	676.1	1,646.5
2021/22		1,056.5	757.8	1,814.3
2022/23		1,022.4	719.4	1,741.8
2023/24		1,454.0	1,017.9	2,471.9
TVET Institutions				
2019/20		2,196.7	1,885.8	4,082.5

2020/21		2,131.7	1,850.7	3,982.4
2021/22		2,083.9	1,784.6	3,868.5
2022/23		2,072.3	1,739.7	3,812.0
2023/24		3,804.6	2,730.8	6,535.4

Source: Higher Education Loans Board

2. HELB Bursary Awarded by Sex, 2019/20 – 2023/24

Year	Institution	Amount of Loans Awarded (KSh. Million)		
Public Universities		Male	Female	Total
2019/20		78.0	46.3	124.5
2020/21		75.7	38.8	114.5
2021/22		93.4	50.9	124.3
2022/23		79.5	38.5	118.0
2023/24		76.0	37.1	113.1
Private Universities				
2019/20		11.6	6.9	18.5
2020/21		14.8	7.8	22.6
2021/22		16.6	9.0	25.6
2022/23		15.9	8.7	24.6
2023/24		16.3	8.7	25.0
TVET Institutions				
2019/20		60.1	35.7	95.7
2020/21		58.4	41.6	100.0
2021/22		57.2	42.7	99.9
2022/23		56.6	43.4	100.0
2023/24		36.9	28.0	64.9

***: Provisional**

Source: HELB

3. New Funding Model where, students from the vulnerable and extremely needy households will receive 100% funding while the needy and less needy will get 93%

of government funding and a paltry 7% contribution from their households to cover for the tuition fees.

Year	Male	Female	Amount of Capitation to Universities (KSh. Million)
2023/24*	7,230.9	4,053.7	11,284.5

***: Provisional**

Source: Universities Fund

Arrangements under the Differentiated Unit Cost (DUC) for Universities Fund Cluster Programmes – For those students continuing under this funding model

Cluster	Subject Area	Annual Cost (Ksh)
Ia	Medicine – Pre-Clinical	360,000
IIa	Dentistry – Pre-Clinical	360,000
IIIa	Veterinary Medicine – Pre-Clinical	324,000
IVa	Pharmacy-Pre – Clinical	324,000
Va	Architectural Studies — Architecture Part I	360,000
VI	Engineering Surveying	396,000
VII	The Built Environment and Design — Construction, Real Estate, Urban and Regional Planning, Landscape Architecture, Design, Computing.	360,000
VIII	Agriculture, Health Sciences, Food Sciences, Natural Resource Management and the Natural Environment-Agriculture, Food Science	324,000

IX	Applied Sciences and Education (Science and Technology) Education (Science, Tech, and Special Needs), Exercise and Sport Science, Biochemistry, Biotechnology, Biomedical Sciences, Applied Microbiology and Molecular Biology, Applied and Technical Physics, Applied and Technical Chemistry, Applied and Technical Biology, Statistics, Actuarial Science, Financial Engineering, Environmental Science.	288,000
X	Basic Sciences Mathematics, Physics, Chemistry, Biology, Geography (B.Sc.).	264,000
XI	Applied Social Sciences and the Arts (Professional), Hospitality, Media and Communication Studies, Library and Information Studies, Business Information Technology, Sport Science and Management, Fashion Design, Interior Design, Music (B.Mus.), Civil Aviation Management, Maritime Management, Agribusiness Management, Theatre and Film Studies, Fine Art, Food Service and Management.	240,000

XII	Business, Law, Education (Arts), Economics.	216,000
XIII	Applied Humanities and Social Sciences — Geography (BA), Public Administration, Psychology, Music (BA), Peace and Security Studies, Disaster Management, Anthropology, Languages, BA with Education, Language and Communication, International Relations and Diplomacy, Social Work and Development Studies.	180,000
XIV	Basic Humanities, and Social Sciences Economics, Geography (BA), Basic Humanities and Social Sciences - History, Philosophy, Religion, Sociology, Literature, Political Science, Linguistics.	144,000

Source: UFB, 2023

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

The Constitution of Kenya

Universities Act 42 of 2012-
Universities Funding Framework

Report of the Presidential Working Party on Education Reform
Technical and Vocational Education and Training Act, 2013

- What challenges were encountered in realizing higher education?

- o Limited access
- √ Issues of equity and inclusion
- √ Poor quality programmes
- √ Poor learning outcomes
- o Other:
- √ Low number of professionally trained professors
- o Insufficient mechanisms to ensure smooth transition from secondary to tertiary

There are, various challenges related to access, equity and inclusiveness in education and training; Quality and relevance; Governance and accountability as well as Research. Disparities in access to education and training based on regions and gender still exist in the education sector to a varying degree as outlined by low enrolment especially in marginalized regions and poverty-stricken slum areas. Such regional and gender disparities affect access, completion, transition, and retention. Female students continue to lag behind especially in STEM related disciplines. Some religious and cultural beliefs and lifestyles such as female genital mutilation, early marriages, child labor, nomadism, and detaining children with disabilities at home disenfranchise learners. The quality and relevance of education and training programmes is still not adequate. This is largely attributed to:

- 1) Shortage of teaching staff and trainers in basic education, TVET and Universities
- 2) Disparities in teacher distribution.
- 3) Inadequate facilities to cater for special needs learners including assistive devices.

Under the Science Technology and Innovation sub-sector, the following challenges exists:

1. Insufficient talent centers
2. Low uptake of local innovations;
3. Inadequate incentives framework for private sector investment in research and development
4. Mismatch between the skills possessed and industry requirements due to weak linkages between industry and academia;
5. Inadequate infrastructure and equipment for research in higher education and training institutions; especially in the physical and life sciences, which are the knowledge base for national STI integration and sustainable development;
6. Fragmented approach to planning, implementation, monitoring, evaluation, learning and reporting on STI activities.
7. Inadequate human capacity in specialized fields of STEM affects the uptake and penetration of STI.

- Please elaborate. Brief quantitative information may be added.

2.4 Adult Education and Alternative Learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☐ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong Learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

☒ Provision of flexible learning pathways

- Please elaborate further on the measures taken:

- ☒ Promotion of the Accelerated Education Programmes (AEP) for out of school youth and adults.
- ☒ Recruitment of 100 continuing education programme Instructors
- ☒ Pre-service and in-service of adult and Continuing education Instructors
- ☒ Refurbishment of Community Learning Centers (CLCs)
- ☒ Promotion of the concept of learning cities through Lifelong Learning (LLL)

✓ Establishment of a third pathway in Basic Education Curriculum Framework (BECF)

- What challenges were encountered in realizing adult learning and education?

- ✓ Limited access
- ✓ Limited funding
- ✓ Issues of equity and inclusion
- ☐ Poor learning outcomes
- ☐ Poor quality programmes
- ✓ Low number of professionally trained educators
- ✓ Other:

- ✓ Inadequate learning resources
- ✓ Unfriendly learning environment in terms of infrastructure for ACE learners
- ✓ Learners' competing priorities
- ✓ Outdated data (2007 Adult Literacy Survey Report) on adult literacy rates for informed decision making
- ✓ Low advocacy and publicity of the Adult and Continuing Education (ACE) programme.
- ✓ Mass exit of ACE instructors without replacement

- Please elaborate. Brief quantitative information may be added.

- 2007 Kenya National Adult Literacy Survey report – Illiteracy rates were established at 38.5% translating into a total population of 7.8 m (15 years of age and above).
- Mass exit of adult education instructors – 218 exited between 2021 & 2024 without replacement hence 218 ACE centers not operational.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ☐ Health and sanitation
- ☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

- What challenges were encountered in realizing quality education?

- | | |
|---|--|
| ☐ Non-supportive or inadequate learning environments | ☒ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☒ Cost of education | ☐ Long distances to schools |
| ☒ Conflicts or crises | |
| ☐ Other: | |

Inadequate human resources

Inadequate capitation and funding

Inadequate infrastructure

Inadequate quality assurance and assessment

Insecurity

- Please elaborate. Brief quantitative information may be added.

Conflicts in violent-prone areas and crises such as the COVID-19 pandemic leads to long closure of schools thus affecting learning.

Inadequate human resources: The current teaching staff deficit stands at 111,870 teachers in basic public learning institutions while trainer deficit is 6,203

Inadequate capitation funding: The government subsidy of secondary education has an average shortfall of Kshs. 13 billion annually for the last three financial years. Capitation allocation for TVET has been constant at an average of Kshs. 5.2 billion despite enrolment increasing by 37.09%

Inadequate infrastructure: Institutions of learning still have inadequate infrastructure which leads to congestion due increased enrolment from the 100% transition policy

Inadequate quality assurance staff limits quality assurance services .

Learners and staff are unable to take their studies and their duties respectively in areas that are affected by insecurity

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☒ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Teacher training is provided without discrimination: Teacher training in the Country is provided without discrimination on gender, race, religion, ethnic background or any other basis.

Initial training and continuous professional development are provided: For a person to qualify as a teacher, they must undergo a pre-training at a teachers' training college.

Practicing teachers are required to undergo professional development (TPD) courses on a regular basis.

Minimum standards and qualifications required for the teaching profession: The Government has set minimum qualifications required for one to join a teaching course.

Measures taken to promote diversity in the teaching workforce: The Government has ensured diversity in the teaching workforce by carrying out fair and transparent recruitment of teachers and practising affirmative action where needful.

Establishment of performance monitoring systems: The Teachers Service Commission (TSC) has established a performance monitoring system for teachers through Performance Contracting (PC) and Teacher Performance and Appraisal and Development (TPAD).

Measures taken to increase women in leadership positions in education: Practising fair staff promotions and affirmative action to ensure fair distribution in the number of female school heads.

- What challenges were encountered in the education personnel?

- ☒ Shortages of teaching staff
- ☐ Lack of qualified, trained and motivated teaching staff
- ☐ Lack of training centres
- ☐ Other:
- ☒ Low quality educational infrastructure and materials
- ☒ High student – teacher ratio

Violent conflicts and insecurity affect distribution of teachers in the country.

- Please elaborate. Brief quantitative information may be added.

Shortages of teaching staff: There is a significant shortage of qualified teachers, particularly in rural and marginalized areas. Population growth has led to establishment of new institutions of learning beside expanding existing ones. This has increased demand for teaching staff. The current staffing gap in basic public learning institutions is estimated to be 111,870 teachers while trainer deficit is 6,203. In addition, the basic education sub sector has staffing deficiency of 5,629 officers; its current in post is 4,214 against an authorized establishment of 9843 (NESSP, 2023-2027).

Low quality educational infrastructure and materials: According to NESSP (2023 -2027) institutions of learning still have inadequate infrastructure despite past government's investments. The implementation of the 100% transition policy has increased enrolment leading to congestion. Also, Implementation of the current curriculum reforms has necessitated infrastructure expansion. Institutions of learning require additional infrastructure to meet the needs of new learning areas under Competency Based Curriculum.

Inadequate Learning Materials: Many schools lack sufficient textbooks and other learning materials. This situation forces students to share limited resources, affecting their learning experience.

High student -teacher ratio in some regions: The highest pupil-teacher ratios are registered in Turkana (80.3) and Mandera (73.5) counties (NESSP, 2023-2027).

Radicalization and Insecurity: Some regions are faced by insecurity arising from violent conflicts and radicalization of youth. This affect delivery of quality education, training and research. Learners and staff are unable to undertake studies and their duties respectively in the affected regions.

Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

Human rights education is covered in topics in some of the subjects such as History and Government and Social Studies

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

3.3 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

The Constitution of Kenya

Article 27 (Equality and freedom from discrimination): This article prohibits discrimination on various grounds, including race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language, or birth. It ensures equal protection and benefit of the law for all individuals.

Article 43 (Economic and social rights): This article guarantees every person the right to education.

Article 53 (Children's rights): This article ensures protection of children from abuse, neglect, harmful cultural practices, and all forms of violence and discrimination.

Basic Education Act (2013)

Section 34: Prohibits discrimination on any grounds in the provision of education.

Section 95: Provides for the inclusion of children with special needs and disabilities in the education system, ensuring their right to quality education.

Persons with Disabilities Act (2003)

Section 18: Requires learning institutions to accommodate the needs of persons with disabilities by providing accessible facilities and ensuring they are not discriminated against in any educational establishment.

Children Act (2022)

Part III: Ensures the right of every child to free and compulsory basic education and protects them from discrimination, neglect, and exploitation.

Section 7: Guarantees the right of the child to education and to equal treatment, including equal access to educational opportunities.

National Gender and Equality Commission Act (2011)

This act establishes the National Gender and Equality Commission, which is mandated to promote gender equality and freedom from discrimination. It ensures that both public and private entities comply with laws guaranteeing equal access to opportunities, including education.

Teachers Service Commission Act (2012)

Section 11: Requires the Teachers Service Commission to ensure teachers' recruitment and promotion are based on merit and non-discrimination.

These legal frameworks collectively work towards eliminating discrimination and promoting equal access to education for all individuals in Kenya, ensuring that every child and adult has the opportunity to receive a quality education regardless of their background or personal circumstances.

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

All non-state institutions follow standards laid down by Government

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☐ Registration
- ☐ State monitoring and inspections
- ☐ Qualifications of teachers
- ☐ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees
- ☐ School closures
- ☐ Other

[- Please elaborate:](#)

Registration: The Basic Education Act (2013), Articles 49 and 50, regulates the establishment and registration of private schools in Kenya

State monitoring and inspection: The Basic Education Act (2013) provides for the inspection of private schools by the County Education Board in consultation with the Teachers Service Commission

Registration Guidelines for Alternative Provision of Basic Education and Training (APBET, 2016), section 3.0, provides detailed guidelines for the procedure for registering an institution for as a Basic Education provider.

Qualifications of teachers: Teachers employed in private schools must be registered by the Teachers Service Commission (TSC). The APBET determines that teachers shall meet the minimum entry requirements in terms of training for the level they will be teaching. Section 4.2 of APBET specifies that “a minimum 30% of the teachers at an APBET Institution shall have obtained from a relevant teacher training certificate from a recognized teacher training institution at registration.

Health and Sanitation: APBET Guidelines (2016) provides that APBET institutions shall provide adequate WASH resources and facilities.

Safety: Article 36 of the Basic Education Act (2013) prohibits the physical punishment and mental harassment of a child.

Infrastructure: According to the Basic Education Act (2013), private schools must maintain necessary teaching and learning resources. APBET Registration Guidelines (2016) provides for the provision of adequate resources and facilities by APBET institutions, including minimum Pupil Textbook Ratio (PBR) which is 3:1 in upper primary and 2:1 in secondary schools.

Curriculum: According to the Basic Education Act (2013) , private schools must comply with and follow the approved curriculum.

Student -Teacher ratio: APBET Guidelines (2016) also includes provisions for pupil teacher ratios in primary and secondary education

School fees: The Basic Education Act (2013) regulates the fees payable for the pupil's attendance and his or her travelling and other expenses in respect to that attendance.

- What challenges were encountered in non-state education provision?

- | | |
|--|---|
| ☒ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☒ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Low quality educational infrastructure and materials and low number of professionally trained teachers: Some low-fee private schools mostly located in urban informal settlements do not meet schools' registration requirements such as staffing, acreage, facilities, amongst others.

3.4 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

The Constitution of Kenya, Articles 43(1) (f) and 53 (1) (b)

The Basic Education Act, 2013, Section 95(3) (k)

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☐ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☐ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

The Constitution of Kenya, Article 43(1) (f) guarantees education as a right to every Kenyan. Article 53 (1) (b) stipulates that 'every child has a right to free and compulsory basic

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

education.’ Integrating ICT in education and training helps to actualise this constitutional provision.

The Basic Education Act, 2013 in Section 95(3) (k) provides for the promotion, development, management and governance of education through ICT Integration and Education Management Information System (EMIS) and statutory structural adjustment. This policy provides a framework that promotes utilisation of ICT in management of educational institutions.

Data Protection Act, 2019 provides for regulation of the processing of personal data, rights of data subjects, obligations of data controllers and processors and for connected purposes. This policy provides strategies for data management.

ICT in Education and Training Policy (2021)

The Sessional Paper No. 1 of 2019 calls for integration of ICT in education, training and research; and management, teaching and learning at all levels. This policy provides strategies for access to ICTs, capacity development, safety, security and ethical issues, among others, in order to ensure a transformed education system.

The KICD Act, 2013 provides for the development, evaluation and dissemination of curriculum and curriculum support materials, which includes digital learning resources. This policy intends to promote the utilisation of ICT in curriculum development, implementation, evaluation and assessment

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☒ Limited access to internet and/or electricity |
| ☒ Lack of equity and inclusion in digital learning solutions | ☒ Limited access to hardware (devices, chargers, etc.) |
| ☒ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☒ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☒ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☐ Monitoring results are made public. Please provide the link:

<https://www.knec.ac.ke/nasmla/>

NASIMLA Results publicity show disparities in achievement of learning outcomes and the key barriers

☐ Monitoring processes are participatory, inclusive and regular.

☐ Sector-wide and multisector approach is adopted to education governance.

☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☒ The decision-making process for the allocation of resources to education is transparent.

☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

Monitoring mechanisms- The National Education Management Information System (NEMIS) is a data management system that provides information on the status of the designed indicators in educational institutions.

Financial resources – Education is among the sectors receiving the biggest share in government spending. In the 2022/2023 budget, the Education sector was allocated Kshs. 544.4 billion of which Kshs. 12 billion was set aside for free primary and Kshs. 64.4 billion for free day secondary education. In 2023/2024, the Education budget allocation rose by 10% to Kshs. 597.2 billion.

The decision-making process for the allocation of resources to education is transparent- The Constitution of Kenya 2010 provides for public participation in the budget making process to ensure transparency of the whole process.

Ensuring crisis-sensitive and disaster risk-informed planning and programming- Ministry of Education has developed a policy on disaster risk management in the education sector and put in place Education in Emergencies (EiE) programmes in basic education.

- What challenges were encountered in terms of governance?

- ☒ Budgetary constraints
- ☒ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels
- ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment
- ☐ Lack or weakness of monitoring systems – including the lack of reliable data
- ☐ Poor dialogue with teachers' trade unions
- ☒ Other:

Inadequate human resources

- Please elaborate. Brief quantitative information may be added.

Budgetary constraints: The education budget falls short of adequately meeting its performance indicators. Capitation allocation for TVET has constantly remained at Kshs. 5.2 billion despite rise in enrolment by 37.09%.

Lack of coordination at different levels: Overlapping mandates between agencies in the education sector creates unnecessary conflicts thus compromising service delivery. There are weak linkages as well between the national level and county level education and training offices.

Inadequate human resources: Currently, the basic education sub sector has a staffing deficiency of 5,629 officers. Inadequate staff limits service delivery.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages

- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other: